

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-016 Amendments to Title 5, Chapter 2, Article D of the Chickasaw Nation Code (Process)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation Supreme Court is in the process of expanding the tribal court system to include a district court, and

WHEREAS, Chickasaw Nation Supreme Court Justices have found the need to augment the “Process” Section of the Enabling Act, as passed in FY 2001, to help define and clarify future duties and responsibilities overseen by the district court.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves of the following amendments to Title 5, Chapter 2, Article D of the Chickasaw Nation Code. All other Sections of Title 5, Chapter 2 are to remain the same and are not affected by this resolution.

TITLE 5 CHAPTER 2 ARTICLE D SUMMONS, PROCESS

Section 5-204.5	Issuance of summons.
Section 5-204.6	Form of summons.
Section 5-204.7	Who may serve process personally.
Section 5-204.8	Service of process by mail.
Section 5-204.9	Service by publication.
Section 5-204.10	Publication service upon parties and the unknown successors of named parties.
Section 5-204.11	Reserved.
Section 5-204.12	Reserved.
Section 5-204.13	Completion of publication service.
Section 5-204.14	Entry of default on party served by publication.
Section 5-204.15	Vacating default judgments where service is by publication.

Section 5-204.16	Certain technical errors not grounds for vacating judgment.
Section 5-204.17	Reserved.
Section 5-204.18	Reserved.
Section 5-204.19	Consent is effective substitute for service.
Section 5-204.20	Service pursuant to court order.
Section 5-204.21	Manner of making personal service.
Section 5-204.22	Reserved.
Section 5-204.23	Reserved.
Section 5-204.24	Reserved.
Section 5-204.25	Return of service of process.
Section 5-204.26	Alternative provisions for service in a foreign country.

SECTION 5-204.5 **ISSUANCE OF SUMMONS.**

Upon the filing of a petition or complaint the Court Clerk shall forthwith issue a summons and deliver it for service with a copy of the complaint to the plaintiff, plaintiff's attorney, or to a person specially appointed by the Court to serve it. Upon request of the plaintiff, separate or additional summons shall issue against any defendants.

SECTION 5-204.6 **FORM OF SUMMONS.**

The summons shall be signed by the Court Clerk, be under the seal of the Court, contain the name of the Court and the names of the parties, be directed to the defendant(s), state the name and address and telephone number of the plaintiff's attorney, if any, otherwise the plaintiff's address, and the time within which the party is required to respond or appear and defend, and shall notify him that in case of his failure to do so, judgment by default will be rendered against him for the relief demanded in the complaint. When service is made pursuant to a statute or rule of the Court, the summons, or notice, or order in lieu of summons shall correspond as nearly as may be to that required by an ordinance or rule of the Court.

SECTION 5-204.7 **WHO MAY SERVE PROCESS PERSONALLY.**

A. Process including a subpoena, if served in person, shall be served by a person licensed to make service of process in civil cases by a state of the United States or the federal government, or a person specially appointed by the Court for that purpose.

B. When process has been served, the return thereof shall be filed in the office of the Court Clerk.

C. The Court shall freely make special appointees to serve all process under this paragraph.

SECTION 5-204.8 **SERVICE OF PROCESS BY MAIL.**

- A. A summons and petition, and a subpoena, may be served by mail.
- B. Service by mail may be accomplished by mailing the documents to be served by certified mail, return receipt requested and delivery restricted to the addressee.
- C. Service pursuant to this paragraph shall not be the basis for the entry of a default or a Judgment by default unless the record contains a return receipt showing acceptance by the party served or a returned envelope showing refusal of the process by the defendant. If delivery of the process is refused, upon the receipt of notice of such refusal and at least ten (10) days before applying for entry of default or Judgment by default, the person serving the process shall mail to the opposing party(s) by first-class mail to the last known address, postage prepaid, notice of hearing on the matter. A copy of said notice and proof of mailing thereof shall be filed of record in the case prior to the entry of a Judgment by default.

SECTION 5-204.9 **SERVICE BY PUBLICATION.**

Service of summons upon a named defendant may be made by publication if, after exercise of due diligence, service cannot be made upon the defendant by any other method. An affidavit must be filed outlining the due diligence exercised.

SECTION 5-204.10 **PUBLICATION SERVICE UPON PARTIES AND THE UNKNOWN SUCCESSORS OF NAMED PARTIES.**

- A. Service of summons upon named parties may be made by publication as provided above when any person named as a party in interest cannot be found.
- B. Service pursuant to this Section shall be made by publication of a notice, signed by the Court Clerk, in any newspaper of general circulation and distribution in the county of residence of the Plaintiff.
- C. All named parties, may be included in one notice. The notice shall state:
1. The name of the Court in which the petition is filed;
 2. The names of the parties;
 3. That the named parties have been sued and must answer the complaint or other pleading on or before a time to be stated, which shall not be less than thirty-one (31) days from the date of the publication, or Judgment, the nature of which shall be stated, will be rendered accordingly.

D. It is not necessary for the publication notice to state that the Judgment will include recovery of costs in order for a Judgment following the publication notice to include costs of suit.

E. Service is complete upon publication.

SECTION 5-204.11 **RESERVED.**

SECTION 5-204.12 **RESERVED.**

SECTION 5-204.13 **COMPLETION OF PUBLICATION SERVICE.**

Service by publication is complete when made in the manner and for the time prescribed herein. Service by publication shall be proved by the affidavit of any person having knowledge of the publication with a copy of the published notice attached. No default judgment may be entered on such service until proof of service by publication is filed with and approved by the Court.

SECTION 5-204.14 **ENTRY OF DEFAULT ON PARTY SERVED BY PUBLICATION.**

Before entry of a default judgment or order against a party who has been served solely by publication, the Court shall conduct an inquiry to determine whether the plaintiff, or someone acting in his behalf, made a distinct and meaningful search of all reasonably available sources to ascertain the whereabouts of any named parties who have been served solely by publication under this subsection.

SECTION 5-204.15 **VACATING DEFAULT JUDGMENTS WHERE SERVICE IS BY PUBLICATION.**

A. A party against whom a default judgment or order has been rendered, without other service than by publication in a newspaper, may, at anytime within three (3) years after the date of the judgment or order, have the judgment or order opened and be left in to defend.

B. Before the judgment or order is opened, the applicant shall notify the adverse party of his intention to make such challenge, and shall:

1. File a full answer to the petition;
2. Pay all costs if the Court requires them to be paid; and
3. Satisfy the Court by affidavit or other evidence that during the pendency of the action he had no actual notice thereof in time to appear in Court and make his defense.

C. The adverse party, on the hearing of any application to open a Judgment or order as provided by this Section, shall be allowed to present evidence to show that during the pendency of the action the applicant had notice thereof in time to appear in Court and make his defense.

SECTION 5-204.16 **CERTAIN TECHNICAL ERRORS NOT GROUNDS FOR VACATING JUDGMENT.**

A. No judgment heretofore or hereafter rendered in any action against any person or party served by publication shall be construed or held to be void or voidable because the affidavit for such service by publication on file in the action was made by the attorney for the plaintiff or because the complaint or other pleading was verified, if verification is necessary, by the attorney for the plaintiff or party seeking such service by publication. In all such cases it shall be conclusively presumed, if otherwise sufficient, that the allegations and statements made by such attorney were and are in legal effect and for all purposes made by plaintiff and shall have the same force and effect as if actually made by the plaintiff.

B. All such judgments, if not otherwise defective or void, are hereby declared valid and legally effective and conclusive as of the date thereof as if such affidavit was made or the complaint or pleading was verified by the plaintiff or other party obtaining such service by publication.

SECTION 5-204.17 **RESERVED.**

SECTION 5-204.18 **RESERVED.**

SECTION 5-204.19 **CONSENT IS EFFECTIVE SUBSTITUTE FOR SERVICE.**

An acknowledgment on the summons or the voluntary appearance of a defendant is equivalent to service.

SECTION 5-204.20 **SERVICE PURSUANT TO COURT ORDER.**

If service cannot be made by personal delivery or by mail, a party in interest may be served as provided by court order in any manner which is reasonable calculated to give actual notice of the proceedings and an opportunity to be heard. The Court may enter an order requiring such service whenever service has been by publication only prior to entering a default judgment.

SECTION 5-204.21 **MANNER OF MAKING PERSONAL SERVICE.**

A. The summons and complaint shall be served together. The plaintiff shall furnish the person making service with such copies as are necessary. If the complaint is not served with the summons, the case shall not be dismissed but the time to answer should be extended by the Court

upon motion. The person serving the summons shall state on the copy that is left with the party served the date that service was made. Where service is to be made by mail, the person mailing the summons shall state on the copy that is mailed to the party to be served the date of mailing. These provisions are not jurisdictional, but if the failure to comply with them prejudices the party served, the Court may extend the time to answer. Service of the summons and complaint and service of subpoenas shall be made as follows:

1. Upon an individual other than an infant or an incompetent person, by delivering a copy of the summons and a copy of the complaint to him personally or by leaving copies thereof at this dwelling, house, or usual place of abode with some person fifteen (15) years of age or older then residing therein or by delivering a copy of the summons and a copy of the complaint to an agent authorized by appointment or by law to receive service of process.

2. Upon a minor, by having the court appoint a guardian ad litem to accept service. The guardian ad litem shall have a duty to give actual notice to said minor and represent the minor's interests.

3. Upon a domestic or foreign corporation or upon a partnership or other unincorporated association which is subject to suit under a common name, by delivering a copy of the summons and of the complaint to an officer, a managing or general agent, or to any other agent authorized by appointment or by law to receive service of process and, if the agent is one authorized by statute to receive service and the statute so requires, by also mailing a copy to the defendant. Service may also be had upon such entities by delivering the summons and complaint to a place of business of such entity and leaving a copy with the person in charge of that place of business at the time service is made.

SECTION 5-204.22 **RESERVED.**

SECTION 5-204.23 **RESERVED.**

SECTION 5-204.24 **RESERVED.**

SECTION 5-204.25 **RETURN OF SERVICE OF PROCESS.**

A. The person serving the process shall make proof of service thereof to the Court promptly and in any event within the time during which the person served must respond to the process. If service is made by a person other than the commanding officer of the BIA Law Enforcement Division or his deputy, the BIA police or their deputy, or an attorney by mail, he shall make affidavit thereof. The person serving the process shall make affidavit to the proof of service if service was made by mail by filing the receipt for certified mail. A copy of each publication of

notice shall be attached to the return of service by publication. Failure to make proof of service does not affect the validity of the service.

B. The person serving the summons shall state on the copy that is left with the party served, as well as on the return, the date that service is made. Where service is to be made by mail, the person mailing the summons shall state on the copy that is mailed to the party to be served, the date of mailing. These provisions are not jurisdictional, but if the failure to comply with them prejudices the party served, the Court may extend the time to answer.

SECTION 5-204.26 **ALTERNATIVE PROVISIONS FOR SERVICE IN A FOREIGN COUNTRY.**

A. When Chickasaw law authorizes service upon a party not an inhabitant of or found within the territorial jurisdiction of the Court, and when service is to be effected upon a party in a foreign country, it is also sufficient if service of the summons and complaint is made:

1. in the manner prescribed by the law of the Chickasaw Nation, state, or foreign country for service in that tribe, state, or country in an action in any of its courts of general jurisdiction;
2. as directed by the foreign authority in response to a letter rogatory when service in either case is reasonably calculated to give actual notice;
3. upon an individual, by delivery to him personally, and upon a corporation or partnership or association, by delivery to an officer, manager or general agent;
4. by a form of mail, requiring a signed receipt, to be addressed and dispatched by the Court Clerk to the party to be served; or
5. as directed by the order of the Court.

B. Service under 3 or 5, above may be made by any person who is not a party and is not less than eighteen (18) years of age or who is designated by order of the Court or by the foreign court. On request, the Court Clerk shall deliver the summons to the plaintiff for transmission to the person or the foreign court or officer who will make the service.

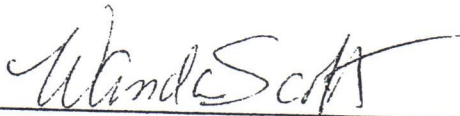
C. Proof of service may be made as prescribed herein, or by the law of the tribe, state, or foreign country, or by order of the Court. When service is made by mail, proof of service shall include a receipt signed by the addressee or other evidence of the delivery to the address satisfactory to the Court.

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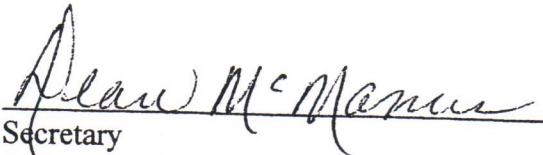
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April 19, 2002

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 19, 2002, by a vote of 12 ayes, 0 nays, 0 abstentions.

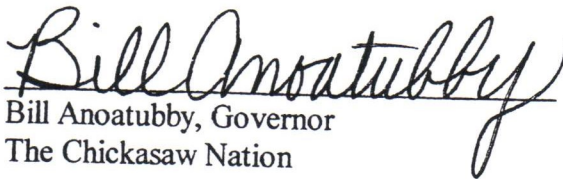


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 19 2002

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 19-016
Amendments to Title 5, Chapter 2, Article D
of the Chickasaw Nation Code
(Process)**

Explanation: This resolution approves of amendments to Title 5, Chapter 2, Article D of the Chickasaw Nation Code. Said amendments will augment the “Process” Section of the Enabling Act, as passed in FY 2001, to help define and clarify future duties and responsibilities overseen by the district court which is currently being developed.

Requested By: Chickasaw Nation Supreme Court

Presented By: Wanda Blackwood Scott, Chairman
Legislative Committee